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1. PURPOSE

This Departmental Regulation (DR) establishes the United States Department of Agriculture (USDA) policy for position management and classification. The DR supplements the Office of Personnel Management's (OPM) regulations, classification standards, guides, and *Classification under the General Schedule*, [5 Code of Federal Regulations \(CFR\) Part 511](#) and *Prevailing Rate Systems*, [5 CFR Part 532](#).

2. SPECIAL INSTRUCTIONS/CANCELLATIONS

- a. This DR supersedes DR 4020-511-001, *Position Classification*, dated October 17, 2016.
- b. All Mission Area, agency, and staff office Chief Human Capital Officers (CHCO) will align their policies and procedures within 6 months of the publication date.
- c. This DR is effective immediately and remains in effect until it is either superseded or expires.

3. SCOPE

- a. This DR applies to all General Schedule (GS) and Federal Wage System (FWS) Mission Areas, agencies, and staff offices personnel and others working for, or on behalf of, USDA.
- b. This DR does not apply to personnel not covered by *Definitions; application*, [5 United States Code \(U.S.C.\) § 5102\(c\)](#).

4. POLICY

- a. Delegated Authority for Position Management and Classification.
 - (1) The Assistant Secretary for Administration's classification authority is delegated to the Director, Office of Human Resources Management (OHRM), serving as the CHCO. The CHCO delegates authority through the Mission Area Under Secretaries, Agency Directors, and Staff Office Directors to their Human Resources (HR) Directors.
 - (2) The Mission Area, agency, and staff office HR Directors may re-delegate authority to Human Resources Operations (HRO) employees who have successfully completed formal training in position management and classification and demonstrated a high level of proficiency.
 - (3) Classification authority will not be delegated to individuals to classify positions for persons who are in the direct line of supervision above them or to classify their own positions.
 - (4) The CHCO may revoke or suspend an HR Director's classification authority if, in the CHCO's judgment, the authority is not being exercised consistently or accurately.
 - (5) Mission Area, agencies, and staff offices HR Directors will maintain records of delegations of authority, including the jurisdictional area.

b. Position Management and Vacancy Control.

Position management is a part of human capital planning and involves a carefully designed position structure that combines the skills and assignments of employees with the organization's mission or function. Sound position management strikes a balance between employees needed to carry out the major functions of the organization, as well as those needed to provide adequate support, between professional employees and technicians, between fully trained employees and trainees, and between supervisors and subordinates. The need for and size of teams should be based upon a sound analysis of the supervisor's span of control (i.e., supervisor-to-employee ratio) and the costs and benefits of the resulting structure in meeting organizational requirements. Supervisors and managers should structure positions to clearly delineate assigned duties and responsibilities within the framework established by mission and function statement and avoid conflict or overlap with other positions; they should use the structure as an effective tool for recruitment, workforce planning, training, advancement, and evaluation of a quality workforce.

(1) Position management will be conducted in a manner that:

- (a) Optimizes productivity and organizational effectiveness;
- (b) Improves the supervisory span of control;
- (c) Assigns work consistent with the occupational series and grade of the position;
- (d) Eliminates duplicative functions or unnecessary organizational layering;
- (e) Minimizes costs, space, equipment, and utilities for those resources; and
- (f) Lends maximum support to equal employment opportunity, upward mobility, and competitive merit promotion programs.

(2) General Principles of Effective Position Management Decisions.

- (a) Organizational changes should improve efficiency through the optimal use of staff. Reducing unnecessary subdivisions and supervisory levels will often accelerate workflow by broadening the span of control, reducing the number of reviews, and shortening the lines of communication.
- (b) The assignment of subordinates to a supervisor will be based on the needs of the organization's function rather than the effect of additional employees on the supervisor's grade.
- (c) The number of organizational entities should be based on factors such as complexity of the work, span of control, and geographic dispersion.

- (d) Assigning higher-grade work to existing lower-grade positions should be avoided whenever possible. Higher-grade work should be concentrated in the fewest number of positions to accomplish the work and not spread to support higher grades for more employees.
- (e) Whenever possible, establish paraprofessional or bridge positions in lieu of certain professional or specialist positions. This will enrich lower-grade positions, provide upward mobility opportunities, and allow higher-grade employees more time to perform work appropriate to their grade level.
- (f) Vacated positions will not be backfilled, and the position description (PD) will be abolished if the duties can be redistributed or eliminated without significantly affecting the accomplishment of essential functions.

(3) Span of Control Guidelines.

The primary goal of maximizing the span of control for supervisors, measured as the supervisor-to-employee ratio, is to ensure that organizations function effectively and efficiently while ensuring the appropriate level of employee supervision and guidance (for example, a ratio of 1:9). An optimal span of control will foster employee development, advancement opportunities, communication, and management efficiencies.

- (a) Analyzing customer needs and workload distribution can help achieve the right balance of supervisory and non-supervisory positions to support their missions.
- (b) When determining an appropriate span of control, the following factors are to be considered:

1 Job complexity.

Subordinate jobs that are complex, ambiguous, dynamic, or otherwise complicated may require more management involvement and a narrower span of control.

2 Similarity of subordinate jobs.

The more similar and routine the task that subordinates are performing, the easier it may be for a manager to supervise employees which may result in a wider span of control.

3 Diversity of assigned functions.

An office having several unique functions and skill sets to accomplish that function may result in a wider span of control.

4 Physical proximity of subordinates and technology.

The more geographically dispersed a group of subordinates, the more difficult it may be for a manager to be in regular contact with them, which may result in a narrower span of control. Depending on the functions and situation, use of technology such as cell phones, email, and video conferencing flexibilities may facilitate communication and the exchange of information to alleviate span of control issues.

(4) Human Capital Plans.

Staff Office Directors and Agency Heads will develop strategic human capital operating plans that include workforce risks, succession planning, performance metrics, and strategies that will be used to accomplish action items and goals.

- (a) The strategic human capital plan will be aligned with the [*USDA Strategic Plan Fiscal Years 2022-2026*](#);
- (b) The funding needed to support the strategic human capital plan will be included in the staff office's or agency's budget planning cycle; and
- (c) The strategic human capital plan will focus on performance. All action items will be measured by performance metrics.

c. Position Classification

Pay is based on the principle of equal pay for substantially equal work. Differences in pay are in proportion to differences in the difficulty, responsibility, and level-of-qualification requirements of the work performed for each class of positions.

(1) Implementing OPM Standards.

New or revised OPM classification standards and guides become effective when issued. Mission Area, agency, and staff office HR Directors will review affected positions and make needed changes within 1 year after the date of the OPM issuance.

(2) Position Description.

The supervisor will review the official record of a classified job for accuracy as needed and ensure that it is adjusted if deficiencies are found. A classified PD does not negate a supervisor's authority to assign work on a temporary basis or change an employee's work assignment consistent with organizational goals, merit principles, and classification standards. A PD will be classified prior to a reorganization that involves establishing a new position or a personnel action to

appoint, promote, reassign, demote, or transfer an employee. The position's final classification will be based on grade-level criteria in the appropriate OPM classification standards and guides and not based on volume or quality of work, efficiency of performance, length of service, financial need, temporary duties, difficulty in filling a position, or in comparison with other positions. A PD is written in the format appropriate for the occupational series and in accordance with OPM classification and job grading standards, regulations, guides, and principles. The following guidelines apply when developing a PD:

(a) Evaluation Statement (ES).

An ES will be prepared for all newly established positions, occupations with no published OPM standard or guide, positions where the duties and responsibilities are classified above or below the grade level criteria in the OPM standard, or positions where more than one series is applicable. The ES will contain a detailed analysis of the duties and responsibilities of the position in comparison to an appropriate OPM standard or guide. The ES will show how the assigned factor level is met, how it exceeds, and how it does not meet the higher factor level. The ES will be signed by the HRO employee with delegated classification authority.

(b) PD Cover Sheet.

The Agriculture Department ([AD](#)) [Form 332](#), *Position Description Cover Sheet* will be certified by the supervisor and the HRO employee with delegated classification authority. A PD will not be certified or approved by non-Federal employees, (e.g., contractors). The HRO employee will complete the form to include all personnel system information and codes.

1 Competitive Level Code.

Codes that represent groups of interchangeable positions in the agency or staff office that are the same grade and series, sufficiently alike in duties, responsibilities, pay schedules, working conditions, terms of appointment, and qualification requirements. The incumbent of any one position could be moved to any other position with the same competitive level code without undue interruption. Mission Areas, agencies, and staff offices HR Directors will establish and assign codes when the position is classified and reviewed when there is a change in the classification or an amendment. Codes will be established and maintained by the HRO.

2 Position Sensitivity Designation.

Codes are used to designate the level of security risk and required background investigation based on the duties of classified PDs. OPM's [Position Designation Tool \(PDT\)](#) will be used to make an accurate

assessment of all classified positions. The PDT results will be attached to the classified PD to ensure that an accurate entry of this information is entered into the personnel system.

3 Cybersecurity Code.

Codes used to describe and document cybersecurity work by category, specialty area, and work role. An accurate and consistent assessment is required for all positions in information technology, cybersecurity, and cybersecurity-related work.

4 Title Code.

Codes that are established and assigned to official and working titles for classified PDs. Requests for new title codes or to reactivate codes must be sent to HR.Policy@usda.gov.

(c) Position Titles.

HROs will follow OPM standards for constructing official titles. Certain occupational series have prescribed official and parenthetical titles to identify the line of work within a job family that will not be modified. When the series has no prescribed title, the official title will be most descriptive of the work. OHRM, Policy Division will approve and provide oversight in the establishment of all titles to ensure adherence to prescribed official titles, prevent redundancy, and ensure consistency in titling across Mission Areas, agencies, and staff offices.

- 1 Working titles such as “Branch Manager,” “Division Director” or “Chief” will not be used as official titles in lieu of a “Supervisory” prefix. The word, “Supervisor” will not be used as a working title.
- 2 The prefix “Supervisory” will only be added to the official title of positions classified using OPM’s [*General Schedule Supervisory Guide \(GSSG\)*](#).
- 3 Parenthetical modifiers to official titles will not be used in official titles unless OPM instructions specifically permit them.
- 4 Titles such as “Confidential Assistant,” “Executive Assistant,” or “Special Assistant” are titles normally reserved for use with Schedule C positions that provide principal support to political appointees and will not be used to refer to any other position.

(d) Unclassified Duties.

These duties represent assigned work that is not classifiable to an occupational series, title, and grade level (also referred to as a statement of duties). An employee may be detailed to unclassified duties in increments of 120 calendar days up to 1 year but will not be officially assigned to unclassified duties. When it is necessary to detail an employee to unclassified duties, management is responsible for describing the duties and responsibilities that will be performed and ensuring the duties are not aligned to a higher graded position. Details to unclassified duties should be made only on rare occasions.

(e) Collateral Duties.

These assignments are separate official duties that are assigned to an employee in addition to the primary duties of their position. With respect to position classification, collateral duties will have the following characteristics:

- 1 Assignments are distinct and separate from the primary duties of the affected position and do not constitute the primary purpose for establishing or continuing the position;
- 2 Assignments do not constitute a grade controlling duty or responsibility;
- 3 Assignments are not a primary duty of the position (they constitute less than 25 percent of the employee's work time);
- 4 Assignments are specific to the affected individual employee, not all incumbents of the same PD; and
- 5 Management is responsible for initiating and completing collateral duty statements in consultation with the HRO employee. The approved collateral duty will become part of the official PD of the impacted employee. An official change to a PD is required when the collateral duty requires a specific skill that is different from those in the original PD and is paramount in influence and weight, or when the collateral duty results in a change to the series, grade, job elements, or performance standards of the original PD.

(f) Full Performance Level (FPL) and Career Ladders.

The FPL of a position is the highest grade at which enough work exists on a continuing basis to support the employees' position at that grade level. The PD is established at the highest level of work available. The sequence of lower-graded positions leading to the FPL is a career ladder. Career ladders are established to allow for entry at a lower grade level than the FPL and are used to develop or train candidates for the target position. Career ladders should

only be established when there is available senior staff with the breadth and scope of technical knowledge necessary to train the incumbent. When a position is filled at a grade lower than the FPL, the employee will be advised that promotions will not be automatic and that they will be eligible for non-competitive career ladder promotions to the FPL in compliance with OPM merit promotion regulations.

1 GS-14 and GS-15 Grade Level Positions.

Positions at the GS-14 and GS-15 grade levels require unique combinations of technical, managerial, and leadership skills. Therefore, it is inconsistent with OPM classification policy to establish developmental or career ladder positions for the GS-14 and GS-15 grade levels. Requests for exceptions will be made to the Mission Area, agency, or staff office HR Directors. Factors to consider in the determination will be:

a Availability of Training Staff.

Career ladders should only be established when there is available senior staff with the breadth and scope of technical knowledge necessary to train the incumbent.

b Uniqueness of Duties.

Positions that require unique, specialized qualifications in cases where there is no staff available or the available staff lacks the knowledge to train the incumbent. In these instances, career ladders will not be established.

2 Career ladder lead positions.

Leader positions will be classified under OPM's [*General Schedule Leader Grade Evaluation Guide \(GSLGEG\)*](#). Developmental or trainee positions are established for non-leader, non-supervisory and non-management positions. Creating a career ladder leader position is inconsistent with the intent of such positions, as well as with performance expectations and sound position classification. There is no mechanism to legitimately create lead positions as "trainee" or "developmental." Per the GSLGEG, classification of a lead position is one grade above the highest non-supervisory grade level of the work led. This is not subject to further interpretation or manipulation. Creating developmental lead positions is prohibited.

3 Career ladder supervisory positions.

Creating a supervisory position as “trainee” or “developmental” is inconsistent with the intent of such positions, as well as with performance expectations and sound position classification. Creating a career ladder supervisory PD does not comply with classification policy where the grade-controlling standard is the GSSG. The GSSG has six factors; only Factor 3 describes duties assigned and performed. The other five factors describe the nature of the work supervised, the supervisor’s reporting chain, the complexity of the work supervised, the contacts with others that flow from the work directed, and the supervisory difficulties associated with supervising in that particular environment. Because five of the six GSSG factors are absolute, there is no mechanism to legitimately construct a trainee or developmental supervisory position that leads to a higher-graded supervisory position.

- (g) If an organization plans to fill the position at a lower or entry grade level, a Statement of Difference (SOD) will be used in combination with a classified PD. The SOD will summarize the duties and requirements at the lower grade level and:

- 1 State how the duties and responsibilities in the target position grade or the FPL are modified for the developmental levels.
- 2 Address individual factors that are affected at the entry grade level, if the occupational series standard is written in Factor Evaluation System (FES) format; and
- 3 Be attached to the fully described target grade level classified PD.

- (h) Special Education, Skills, or Licensures.

It is an accepted practice to include special education, skills, or licensures in the PD only if they are required qualifications and directly tied to the knowledge, skill, and ability required to be appointed to the position.

- (i) Standard PDs.

Standard PDs can be used to cover identical positions within an organizational unit. They follow the same format as the basic PD and describe a specific set of duties and responsibilities at various grade levels. They are generally not appropriate for supervisory positions or for positions at the GS-13 and above.

(j) Identical Additional.

Positions assigned to a standard PD are termed “Identical Additional,” (I/A) which means that the positions assigned to the same standard PD have the same major duties, responsibilities, qualification requirements, organizational patterns, and reporting relationships. Any proposed classification action that impacts one I/A position will impact all I/A positions on that PD. Therefore, the classifier will review all impacted positions as part of the position evaluation and before effecting any action.

(k) Interdisciplinary Professional Positions.

Interdisciplinary classification is used only for positions in professional occupational series such as mathematical, scientific, or engineering disciplines and is not appropriate for administrative positions. The interdisciplinary approach is an alternate method for determining the series for some professional positions where the duties and responsibilities of more than one professional series are closely related. Related disciplines often have a common core of education and experience where the qualifications can be met by persons in either professional series. Generally, when a position involves work or knowledge pertaining to more than one profession, classification to the predominate series is preferable and the most practical solution.

(l) Grade Stacking.

Establishing subordinate positions at the same grade as the supervisor (classified using the *GSSG*) is to be documented as an exception to classification and position management principles. This practice is referred to as “grade stacking” and will not be used unless a complete evaluation is prepared and approved by the Mission Area, agency, or staff office HR Director.

(m) Amendments.

When major duties of a PD have undergone changes which are material but not enough to warrant a complete rewrite of the description, the changes are reported by preparing a PD amendment. Amendments can be used if there is no change in title, series, or grade as a result. PDs are amended by means of an AD-332 and an attached statement containing only what is necessary to explain what has been taken from or added to the original PD.

(3) Desk Audits and Reviews.

(a) Desk Audits.

Desk Audits are part of a comprehensive review of a position conducted by the HRO employee with classification authority. The desk audit is a thorough examination of the position that includes an interview with the affected employee and their supervisor. A review and analysis are conducted to assess the major duties and responsibilities to determine the appropriate classification of the title, series, and grade. The HRO conducting the review is required to write a report of their findings in a complete ES and maintain the original with the official files.

Requesting a Desk Audit. If an employee has reason to believe that there are continuing differences between the work assigned and the official PD which substantially affect the accuracy of the official PD, they should first discuss this with their supervisor. If the supervisor believes the position should be reevaluated because the duties have significantly evolved since the position was classified, they should consult with their HRO to determine if a desk audit and review is warranted. A desk audit and review may also be conducted as the result of a grievance filed by the employee. Bargaining unit employees will comply with negotiated agreement classification appeal and grievance procedures.

(b) Position Maintenance Review.

HROs will, on a cyclical basis, conduct a position management and classification review of an organization's positions in partnership with Mission Areas, agencies, and staff office management. The objective of the review will be to ensure the existence of current, adequate, and accurate PDs; ensure management's awareness and accountability for accuracy in assigning work commensurate with assigned PDs; monitor position workload and grade structure; maintain consistency of PDs with appropriate standards; and identify issues with questionable positions and structures. Reviews should be conducted every 3 to 5 years.

(c) Classification Consistency Reviews.

HROs are required to conduct these reviews when OPM issues a new or revised classification standard or guide. This review is to be completed within 1 year of the date of issue. In addition, the Department or OPM may require a review when, as the result of an adjudicated classification appeal, it has reason to believe that identical, similar, or related positions may be classified inconsistently with the appealed position. The Mission Area, agency, or staff office HR Director will receive written instructions from either the Department or OPM regarding the reporting requirements and timeframes for completion.

The review and report are intended to provide the Department or OPM with information to ensure that Mission Areas, agencies, and staff offices are complying with statutory requirements.

(4) Reclassifying Encumbered Positions to Lower Grades.

If the desk audit results in the position being classified at a lower grade level, the HRO will advise the employee in writing of the action and the proposed date of the change to the lower grade prior to taking the action. The written memorandum will also include information about the employee's right to file a classification appeal in accordance with OHRM and OPM policy and specify the time limits for doing so.

- (a) Reclassification to a lower-grade position will not interfere with the employee's rights under the laws and regulations regarding reduction in force (RIF), adverse, or performance-based actions.
- (b) RIF regulations do not apply when the downgrading of the position is the result of the application of a new or revised OPM standard, correction of a classification error, or the erosion of duties.
- (c) The downgrade will become effective within six pay periods of the determination, or the employee will be reassigned to a position that is accurately classified at the employee's original grade level.
- (d) A classification action cannot be made retroactive unless the employee was wrongfully demoted as the result of a prior misclassified action and filed an appeal within 15 calendar days of the effective date of the demotion, in accordance with *Retroactive Effective Date*, [5 CFR § 511.703](#) and *Job Grading Reviews and Appeals; General*, [5 CFR § 532.701](#).

If the desk audit resulted in a lower grade level determination, the HRO will review all I/A and similar positions in the organization for consistency prior to taking the action. As appropriate, positions will be reclassified consistent with the decision, in accordance with OPM classification regulations and standards.

(5) Reclassifying Encumbered Positions to Higher Grades.

A desk audit may result in the classification of duties at a higher grade level or basic rate of pay. This can occur as the result of a natural evolution of work, impact of person in the position, new or revised OPM classification standards, or a misclassified position. Assigning a specific set of higher-grade work to an employee for the purpose of upgrading the employee's position is a planned management action and should be avoided since the employee could not be noncompetitively promoted.

The concept of “impact of the person” on the job is based on the premise that the special knowledge, skills, abilities, and accomplishments of the incumbent may influence the duties, responsibilities, and expectations of the job. As such, the impact of the person on the job is reflected in the classification when the performance of an individual makes the job materially different from what it otherwise would be, i.e., a higher-grade position.

(6) Reclassifying Duties and Noncompetitive Promotions.

As a result of a desk audit, if the classification determination demonstrates that there has been a natural evolution based on the impact of the person (as opposed to a planned management action), then the duties of the position will be reclassified at the higher grade level or different series. The supervisor, in consultation with the HRO, has the option and authority to assign the higher-level work to an appropriate position, reassign the incumbent to an equivalent position at the current grade level, or noncompetitively promote the incumbent in their reclassified position to the higher grade level. Noncompetitive promotions based on the impact of the person in the position are not retroactive. All the following conditions will be met before approving a noncompetitive promotion action based on reclassified duties:

- (a) The new duties are grade controlling and are regular and recurring (performed at least 25 percent of the time);
- (b) There is demonstrated evidence of higher-level duties and responsibilities;
- (c) The major duties and basic functions of the former position are absorbed in the new position;
- (d) The noncompetitive action will not result in the creation of a new position and the former position is abolished;
- (e) The successor position will not have any known promotion potential beyond the accreted grade level;
- (f) The addition of the higher-level duties will not result in the abolishment of another position, reduce the FPL of a vacant position, or otherwise adversely impact another occupied position;
- (g) No other employee in the same organizational unit or functional area who occupies an identical or similar position is performing identical or similar duties as the position under review;
- (h) The GS employee meets time-in-grade and qualification requirements;
- (i) The FWS employee meets qualification standard requirements; and

- (j) GS employees will not be accreted more than one grade level above the position under review nor accreted more than once in the same position.

Noncompetitive promotions will not be based on:

- (k) Reclassification of a position from one-grade interval position to a two-grade interval position;
- (l) Reclassification of a position from one occupational series to another occupational series;
- (m) Movement of the incumbent from their existing position to a vacant, higher-level position;
- (n) Reclassification of a position from an I/A position in the same organizational unit or functional area;
- (o) Reclassification of a position from a non-supervisory to a supervisory position;
- (p) Reclassification of a position from a non-leader to a leader position; or
- (q) Reclassification of duties that cross organizational units or functional areas.

d. Special Provisions

- (1) Research organizations will obtain Departmental approval and delegated position classification authority to establish a research panel evaluation system to evaluate and classify grade levels for their research positions classified using the RGEG.
- (2) Attorney positions will not be established in an organization outside of the Office of the General Counsel (OGC) without concurrence of OGC.
- (3) Criminal Investigator positions will not be established in an organization outside of the Office of the Inspector General (OIG) without concurrence of OIG.
- (4) Positions performing firefighting and law enforcement work will meet the standard for Special Retirement Coverage under *Applicability and Purpose*, [5 CFR § 831.901](#) or *Applicability and Purpose*, [5 CFR § 842.801](#). Once classified, the Mission Area, agency, or staff office HR Director will submit a cover memorandum, a copy of the PDs, and documentation to support the request for special retirement coverage approval to OHRM. All documents for approved positions will be sent to OPM and the applicable Mission Area, agency, or staff office will be notified of the approval.
- (5) The establishment of a Team Leader position is not appropriate unless it is part of a team-based organizational structure implemented to empower front line employees

and eliminate supervisory layers. Team Leaders are not supervisors or management officials. These positions will not be established to address pay issues.

5. MISSION AREA, AGENCY, AND STAFF OFFICE APPELLATE PROCEDURES

- a. Mission Area, agency, and staff office HR Directors are encouraged to establish classification and job grading appeal procedures. If a process is established, written procedures will be made available to all employees and will align with policy and appeal rights contained in this DR.
- b. Mission Area, agency, and staff office classification and job grading appellate procedures will not interfere with the right of the employee to file an appeal directly to the Department or OPM, but not both at the same time.
- c. Mission Area, agency, and staff office classification and job grading decisions will be issued promptly and include a notice of appeal rights and time limits to file in order to preserve their rights to retroactive adjustment. If the employee is not entitled to grade retention, the employee will be notified of the right to appeal the action to the Merit Systems Protection Board. Such appeals are appropriate only if the appealed action does not comply with the law or regulations.

6. APPEALS FOR GENERAL SCHEDULE AND FEDERAL WAGE SYSTEM POSITIONS

- a. GS Employees.

Employees in the GS pay system may file a classification appeal at any time with their Mission Area HRO, OHRM, or OPM. If the GS employee is dissatisfied with the Mission Area or OHRM decision, they may file an appeal with OPM within 15 calendar days of receiving the decision.

- b. FWS Employees.

Employees in the FWS pay system (Wage Grade, Wage Leader, or Wage Supervisor) will first file an appeal within their Mission Area. If an FWS employee is dissatisfied with the Mission Area decision, they may file a subsequent appeal with OHRM or OPM within 15 calendar days of receiving the Mission Area decision.

- c. Departmental Administration (DA) Employees.

DA employees may file a classification appeal directly to the CHCO.

- d. An employee may not file an appeal with OHRM and OPM at the same time.
- e. Bargaining Unit Employees.

Bargaining unit employees will comply with classification appellate procedures in their negotiated agreement.

f. Appealable Items.

Mission Area, agency, and staff office employees may appeal decisions made by their Mission Area or OHRM relative to the grade, occupational series, title, or pay system of their position.

g. Pay System Appeal.

The employee may appeal the pay system of their current position. The CHCO will review the position to determine the appropriate pay system issue only. Following the determination, the appeal will be returned to the Mission Area, agency, or staff office for a classification determination within the specified pay system. If the employee disagrees with the determination, the employee may then file an appeal with OPM.

h. Non-Appealable Items.

Mission Area, agency, and staff office employees may not appeal: the content or accuracy of the duties assigned in their official PD, the accuracy of a classification standard, rate of pay, or propriety of a wage schedule of a Mission Area's, agency's, or staff office's proposed classification decision; the classification of positions to which an employee is not officially assigned; the classification of an employee's position based on comparison with other positions; or the classification of positions to which an employee is detailed or temporarily promoted for a period of less than 2 years.

i. Designating Representatives.

The employee may file personally or through a designated representative of their choice. The designated representative must not pose a potential conflict of interest or position. The employee will notify the Department in writing of the selection of a designated representative.

- (1) The employee's representative cannot be a supervisor with authority over the position, an official of the Mission Area, agency, or staff office who has classification authority over the position, or an employee who occupies a position in the human resources management GS-0201 occupational series.
- (2) The representative will cooperate with OHRM in processing the appeal, provide information in a timely manner, and submit position information relevant to the classification.
- (3) The employee or the representative may review the official appeal file maintained in OHRM by contacting the Deciding Official. OHRM will establish the date, time,

and place where the file can be reviewed. The representative does not have the right to be present during any fact-finding sessions or determine the way in which the facts are gathered about the position.

j. Classification appeals must contain the following information:

- (1) The employee's name and the address where the employee wants to receive information concerning the appeal.
- (2) The current classification of the employee's position and the requested classification.
- (3) The employing agency or staff office name, division, branch, work address, and work telephone number of the employee's immediate supervisor.
- (4) A copy of the official PD and a statement indicating which portions, if any, the employee feels are inaccurate or insufficiently detailed.
- (5) A narrative explaining why the employee feels that the current classification should be changed and any additional information; and
- (6) DA employees will address a letter to the CHCO. The letter of appeal will include the employee's name, office, organizational unit, position title, series, and grade level. The appeal will state the reason the employee believes the position is incorrectly classified and the requested title, series, and grade.

k. Acknowledgement and Request for the File.

Upon receiving the appeal, the CHCO will send a letter to the employee (or representative) acknowledging receipt. The CHCO will request the administrative file from the Mission Area, agency, or staff office HR Director. The CHCO will forward a copy of the information in connection with the adjudication of the appeal to CHCO, within 30 calendar days of the request. They will also make it available to the employee (or representative) within the same timeframe. If the administrative file, such as an ES or current PD are not available, the Mission Area, agency, or staff office HR Directors will prepare the missing documents within 30 calendar days of the OHRM notice of appeal.

l. Mission Area, agency, or staff office Classification Actions.

If an employee files an appeal with OHRM or OPM, this does not automatically stop the classification action taken by the Mission Area, agency, or staff office on its own decision. In such cases, the Mission Area, agency, or staff office policies govern. Organizations are encouraged not to postpone, delay, or take alternative personnel actions solely because an employee has filed an appeal with OHRM or OPM.

m. Basis for an Appeal Decision.

OHRM will decide appeals based on the duties assigned and performed by the employees in comparison with OPM position classification standards and guides.

n. Decisions.

Decisions issued by OHRM are final within USDA unless the employee files an appeal with OPM no later than 15 calendar days following the date of OHRM's decision. Decisions are not based on volume or quality of work, efficiency of performance, temporary duties, difficulty in filling the position, employee's length of service, or financial need.

o. Consistency Review.

If, during the review of the appeal, the OHRM Deciding Official uncovers substantial information indicating inconsistent classification practices, the Mission Area, agency, or staff office HR Directors will be directed to conduct a consistency review of similar positions. Either OPM or OHRM will also require a review when the appeal decision impacts identical and similar positions in the organization. Once the review is complete, the HR Director will prepare a formal written report for the CHCO. The report will outline the findings of the consistency issue and corrective actions. The CHCO will work with the Mission Area, agency, or staff office HR Directors to establish mutually acceptable timeframes for any actions to be taken.

p. Compliance.

Mission Area, agency, or staff office HR Directors are expected to comply with CHCO or the OPM appellant decision. If the decision changes the classification of the employee's position, the Mission Area, agency, or staff office HR Director will provide a copy of the employee's Standard Form 50 (SF-50), *Notification of Personnel Action* to OHRM or to the OPM Adjudicator. The SF-50 will state the nature of action taken, new position information, and effective date.

q. Effective Dates.

The Mission Area, agency, or staff office HR Directors will make CHCO decisions effective within four pay periods if it results in a higher-grade position and six pay periods if it results in a lower-grade position.

r. OPM Appeals.

Employees who choose to file an appeal with OPM will follow OPM classification appellant procedures found at OPM [*Classification and Qualifications Filing Instructions*](#). OPM appellant decisions are final and there is no further appeal process.

s. Reconsideration of OHRM Appeal Decisions.

An OHRM classification decision may be reopened when information is presented that establishes a basis such as new, relevant, and substantive facts which were not previously considered. The CHCO may, at their discretion, reopen and reconsider any decision. Requests for reconsideration will be submitted in writing to the CHCO no later than 45 calendar days following the date of the original CHCO decision. If either the employee or the Mission Area, agency, or staff office HR Director wants to request a stay of the final decision (pending the outcome of the reconsideration request), the reconsideration request will state the reasons why the request should be granted. If, after reconsideration, the CHCO sustains the original decision, it will be implemented by the Mission Area, agency, or staff office HR Director as of the date specified in the original decision. If the original OHRM decision directs the downgrading of an employee who was not entitled to retained grade or pay, a new effective date will be established in the reconsideration decision.

t. Where to File the Appeal.

Employees will submit classification and job-grading appeals in writing with their original signature to: HR.Policy@usda.gov.

u. Cancellation of an Appeal.

OHRM will cancel an employee's appeal when the employee requests a cancellation in writing, it is learned that the employee is no longer officially assigned to the position, the employee dies, the position is abolished, the employee appeals to OPM, or the employee or representative does not exercise due diligence in moving the appeal forward to final resolution. A cancelled appeal cannot be reopened unless the employee is able to show that circumstances beyond their control prevented the timely movement of the appeal.

v. Retroactive Actions.

For a decision to be retroactively effective, the employee will appeal the Mission Area, agency, or staff office classification decision to the CHCO no later than 15 calendar days after the effective date of the demotion action. In addition, the OHRM decision will correct any error in the Mission Area's, agency's, or staff office's classification decision that resulted in an actual decrease in the employee's pay.

7. APPEALS FOR RESEARCH POSITIONS

- a. OHRM's appeal process for research and development positions is intended as a review of Mission Area, agency, and staff office classification determinations. The work situation changes frequently in such positions and appellate decisions should be based on the current work situation.

- b. When the classification of such a position is appealed, the CHCO will direct the employee's Mission Area, agency, or staff office to review the work situation to determine if it has changed since the most recent peer review by the Mission Area, agency, or staff office. If no change has occurred, the Mission Area, agency, or staff office will be expected to issue an administrative report reaffirming the accuracy of their original decision. However, if there are changes that affect the classification, the Mission Area, agency, or staff office has the obligation to act on them (i.e., re-panel the case and issue an explanatory administrative report).
- c. CHCO will coordinate with the Mission Area's, agency's, or staff office's HRO to obtain a list of peers and schedule a peer review of an appealed position. The employee's HRO will be required to submit a copy of the following documentation for OHRM's use in adjudicating the appeal:
 - (1) The employee's current official PD certified by the supervisor and HRO classification specialist;
 - (2) A classification evaluation summarizing the recommendations of the HRO peer panel and explaining the rationale for the series, title, and grade-level allocations by comparing the position to the applicable OPM standards and guides;
 - (3) The certified PD and ES for the employee's immediate supervisor;
 - (4) Applicable functional statements and organization staffing charts;
 - (5) The official project description covering the research which the employee conducts or leads. The project description should address the objective, the expected outcome, the approaches to be taken, milestones, and official progress reports of the work;
 - (6) Copies of three to five publications which best demonstrate the employee's overall qualifications and contributions. More than five publications may be reviewed if the employee is convinced they are needed to adequately characterize the contributions;
 - (7) The official certified PDs for research and development positions supervised by the employee and for other positions supervised if they are graded at GS-11 or higher; and
 - (8) Any other pertinent information which OHRM, the Mission Area, agency, staff office or the employee wish to have considered and which existed at the time of the HRO's most recent review of the position.

8. ROLES AND RESPONSIBILITIES

a. The CHCO will:

- (1) Provide position management and classification guidance and support for DA employees, including the Office of the Secretary and staff office employees;
- (2) Revoke or suspend a Mission Area's, agency's, or Staff Office's HR Director classification authority if, in the CHCO's judgment, the authority is not being exercised consistently or accurately;
- (3) Facilitate the accomplishment of the human capital action planning process with Agency Heads and Staff Office Directors;
- (4) Provide advice and assistance to Mission Areas, agencies, and staff offices on the effective management of resources through the position management and classification process;
- (5) Develop, administer, and evaluate position management and classification policies and programs;
- (6) Provide overall management and oversight of USDA's classification program;
- (7) Coordinate OHRM's response to OPM's guidance and standards development activities;
- (8) Review and adjudicate classification appeal cases upon request by employees in the appeal process; and
- (9) Review and determine the approval of classification policy exception requests.

b. Mission Area Under Secretaries, Agency Heads, and Staff Office Directors will:

- (1) Assess workforce characteristics and needs to align hiring and position management practices and procedures with their organization's mission, strategic goals, and performance objectives;
- (2) Work with their HR Directors to ensure compliance with this DR when establishing and evaluating positions;
- (3) Consult with their HR Directors to ensure that staffing decisions comply with merit promotion laws and OPM classification regulations;
- (4) Conduct workforce analysis and organizational efficiency studies to support sound position management;

- (5) Maximize the span of control to ensure that organizations function effectively and efficiently while ensuring the appropriate level of supervision and guidance;
- (6) Develop and implement effective strategies to attract, develop, manage, and retain skilled employees as detailed in their Mission Area's annual human capital action plan;
- (7) Maintain staffing plans to document authorized and budgeted position allocations;
- (8) Communicate all policies, practices, and business processes in standard operating procedures;
- (9) Ensure proper internal controls are established and documented at all levels of the organization to determine the need for replacement or new positions;
- (10) Continuously review business processes to ensure they are being performed as efficiently as possible;
- (11) Work with their HR Directors to ensure PDs are updated and consistent with any organizational changes that may impact the position; and
- (12) Develop human capital plans that align with the USDA strategic and human capital operating plan.

c. Mission Area, Agency, and Staff Office HR Directors and HROs will:

- (1) Work with senior-level staff and managers to provide guidance and assistance to complete documents that justify positions, update PDs, and comply with all Departmental directives and guidance on organizational planning and approval;
- (2) Ensure that staffing and classification decisions are valid and consistent with merit promotion laws and OPM classification regulations, standards, and policies;
- (3) Ensure accountability of position management and classification and partner with supervisors and managers to support USDA and OHRM efforts;
- (4) Ensure classification programs are carried out consistently within the laws, regulations, policies, delegated authorities, and OPM classification standards and guides. This includes establishing and assigning competitive levels, determining [*Fair Labor Standards Act \(FLSA\)*](#) exemption status, designating position sensitivity, cybersecurity and other codes related to the position;
- (5) Align policies and procedures with this DR;
- (6) Provide advice and assistance on development of the human capital action plan;

- (7) Conduct workload and workforce analysis studies as needed to provide a framework for skills needed in making position management, classification, and staffing decisions;
 - (8) Establish and communicate procedures for reviewing and deciding classification appeals at the Mission Area, agency, and staff office level;
 - (9) Conduct desk audits and reviews and prepare evaluation statements for new and existing positions;
 - (10) Classify PDs and initiate a review of vacant positions. Work with supervisors and managers to determine whether vacant positions need to be reclassified, inactivated, or abolished and take the appropriate action;
 - (11) Interpret OPM classification standards and guides; review positions and implement new or revised standards within 1 year of publishing;
 - (12) Train personnel and supervisors within the guidelines that have been established in this DR;
 - (13) Issue classification appeal decisions: implement OPM and OHRM decisions and required actions as determined by the decision; and
 - (14) Provide administrative files to OHRM or OPM in the appeal process.
- d. The Associate Chief Information Officers, Information Security Center will advise Mission Area, agency, and staff office HR Directors on the appropriate cybersecurity codes to assign to information technology, cybersecurity, and other positions requiring cybersecurity work.
- e. Mission Area, Agency, and Staff Office Supervisors and Managers will:
- (1) Define major duties and responsibilities of positions and draft PDs;
 - (2) Ensure effective and efficient management of individual positions and certify the accuracy of those PDs in compliance with OPM *Classification under the General Schedule*, [5 CFR Part 511](#) and *Prevailing Rate Systems*, [5 CFR Part 532](#);
 - (3) Ensure that PDs are prepared for each employee and kept current and accurate. PDs will provide a clear and definitive description of the primary duties of all positions under their scope of responsibility, including FLSA exemption status; and
 - (4) Work with Mission Area, agency, or staff office HR Directors on workforce planning and position management when establishing new positions and deciding to fill, reclassify or abolish vacant positions.

f. Employees will:

- (1) File a classification appeal or designate a person to file the appeal on their behalf, in compliance with Section 6, *Appeals for General Schedule and Federal Wage System Positions*, and Section 7, *Appeals for Research Positions*; and
- (2) Discuss the accuracy of their PD with their supervisor when there is reason to believe that there are continuing differences between the work assigned and the official PD.

9. COMPLIANCE

The accuracy and efficiency of Mission Area, agency, and staff office HR Director classification determinations and position management structure will be subject to review by the CHCO during Departmental evaluations, targeted compliance reviews, and assistance visits. The CHCO may revoke or suspend a Mission Area's, agency's, or staff office's HR Director's classification authority if, in the CHCO's judgment, the authority is not being exercised consistently or accurately.

10. POLICY EXCEPTIONS

- a. Mission Area, agency, and staff office HR Directors may only re-delegate classification authority to non-HRO employees with written approval from the CHCO. The Mission Area, agency, and staff office HR Director will request approval in writing and certify that the non-HRO employee has completed formal training and demonstrated a high level of proficiency to reliably and accurately classify positions. The request will also certify that the proposed delegation will not reduce classification accuracy and that the Mission Area, agency, and staff office HR Director will periodically conduct compliance reviews of classifications performed by non-HRO employees to ensure consistency and accuracy. The CHCO will provide a written response to the request.
- b. Mission Area, agency, and staff office HR Directors will direct all other written requests for exceptions to this policy to the CHCO. Requests will include the specific policy exception requested, any organizational studies, position reviews, or other background information that supports the reason for the request. The request will also certify that the proposed exception will not reduce classification accuracy and that compliance reviews of classification affected will be consistent. The CHCO will provide a written response to the request.

11. INQUIRIES

Questions pertaining to this policy should be directed to HR.Policy@usda.gov.

-END-

APPENDIX A

ACRONYMS AND ABBREVIATIONS

AD	Agriculture Department
CFR	Code of Federal Regulations
CHCO	Chief Human Capital Officer
DA	Departmental Administration
DR	Departmental Regulation
ES	Evaluation Statement
FLSA	Fair Labor Standards Act
FPL	Full Performance Level
FWS	Federal Wage System
GSLGEG	General Schedule Leader Grade Evaluation Guide
GS	General Schedule
GSSG	General Schedule Supervisory Grade Evaluation Guide
HRO	Human Resources Operations
I/A	Identical Additional
OGC	Office of the General Counsel
OHRM	Office of Human Resources Management
OIG	Office of the Inspector General
OPM	Office of Personnel Management
PD	Position Description
PDT	Position Designation Tool
RGEG	Research Grade Evaluation Guide
RIF	Reduction in Force
SOD	Statement of Difference
SF	Standard Form
U.S.C.	United States Code
USDA	United States Department of Agriculture
WG	Wage Grade
WL	Wage Leader
WS	Wage Supervisor

APPENDIX B

DEFINITIONS

Agency. Organizational units of the Department, other than staff offices, whose heads report to officials within the Office of the Secretary, Deputy Secretary, Under Secretaries, Assistant Secretaries, and Assistant to the Secretary.

Appeal. A written request from an employee to their Mission Area, agency, or staff office HR Director or the CHCO to review and adjudicate a classification decision as a result of a desk audit. An appeal may also be made to OHRM or OPM.

Certified. An official signature that attests to the accuracy of required duties and responsibilities described in the PD or an official signature that attests to the accuracy of the classified PD in compliance with OPM classification regulations, standards, and guides.

Classification Action. Any official action taken under proper authority to establish a new position or to change an existing position by assignment to the appropriate series and grade under the provisions of [5 U.S.C. Chapter 51](#), *Classification*.

Consistency Review. A review of the classification of positions directed by OPM or OHRM to determine the impact of an appeal decision on similar, identical, or related positions when there is a probability that positions are inconsistently classified. Reviews are also conducted when new or revised OPM classification standards and guides are issued.

Deciding Official. The person with delegated authority to make classification and job grading appeal determinations. This person is also referred to as the Adjudicating Officer and can be in OHRM or at OPM.

Desk Audit. A review of the major duties and responsibilities of the position to determine the classification of the title, series, and grade. The HRO employee carries out the audit through written and oral interviews with the employee and their supervisor to gather, review and evaluate information about the position and prepare an ES. A desk audit may result in the position being upgraded, downgraded, or having duties reassigned.

Federal Wage System (FWS). A uniform classification and pay-setting system that governs Federal appropriated and non-appropriated trades and labor positions and ensures those located within the same local wage area and performing the same duties and responsibilities receive the same hourly pay. This includes Wage Grade (WG), Wage Leader (WL) and Wage Supervisor (WS) positions.

Full Performance Level (FPL). The highest grade level or known promotion potential of a given position.

General Schedule (GS). A Federal civilian classification and pay system that covers white collar federal professional, technical, administrative, and clerical positions.

Human Resources Operations (HRO). A component of a Mission Area that provides day-to-day oversight and management of personnel management (e.g., recruitment, position management and classification, qualification and job analysis, and advisory services).

Mission Area (MA). One or more agencies with related functions that report to the same Under or Assistant Secretary. Research, Education and Economics is an example.

Position Description (PD). An official written statement of the major duties, responsibilities, and organizational relationships of a position certified by the supervisor and classified by the HRO employee or those with delegated classification authority.

Position Maintenance Review. A formal, periodic review of all positions in an organization to ensure the PDs are current, accurate, and that obsolete PDs are abolished. This review does not negate the responsibility of managers to keep PDs up to date, but rather serves as a systematic approach to ensure gradual changes in assignments have not been overlooked.

Position Management (PM). The continuous and systematic process for determining the number of positions needed, the skill and knowledge requirements of those positions, and the organizational grouping of positions to carry out the organizational work of the unit consistent with its function.

Reclassification. Any official action taken under proper authority to change either the title, series, pay system, or grade of an existing position.

Span of Control. The number of subordinates a supervisor can directly control. The appropriate span of control varies depending on job complexity, similarity of subordinate positions, diversity of assigned functions, and the physical proximity of subordinates and technology.

Staff Office. A Departmental administrative office whose head reports directly to the Secretary. All staff offices, except for the Office of Hearings and Appeals, National Appeals Division, and OIG report directly to the Secretary of Agriculture.

Standardized PD. A classified PD that describes primary regular and recurring work assignments that are general enough to cover identical positions in an occupation. PDs are standardized at different grade levels to describe varying levels of responsibility, knowledge, complexity, and supervision required.

Strategic Human Capital Plan. A streamlined plan that documents actions to mitigate succession and workforce risks identified. The human capital plan aligns with the USDA Strategic Plan and with Mission Area, agency, and staff office HRO strategic plans.

Supervisory Ratio. The ratio derived by subtracting the number of permanent supervisors from the number of total subordinates and then dividing the remainder by the number of permanent supervisors.

USDA Strategic Plan. The Department's quadrennial roadmap that details strategic goals and objectives in accomplishing the mission of USDA.

Workforce Analysis. The comprehensive and systematic process for determining the number of people needed with the right skills and competencies necessary to perform the work in an organization. This analysis provides the framework for making staffing decisions based on the mission, strategic plan, and budgetary resources.

Workload Analysis. The descriptive baseline of the resource requirements by discipline, priorities, skill sets, and training to perform work in a business unit.

APPENDIX C

AUTHORITIES AND REFERENCES

Agriculture Department ([AD](#))332, *Position Description Coversheet*

Authorities Delegated to the Assistant Secretary for Administration, [7 CFR § 2.24](#)

Authorities Delegated to the Director, Office of Human Resources Management, [7 CFR § 2.91](#)

Civil Service Special Retirement Coverage, Applicability and Purpose, [5 CFR § 831.901](#)

Classification, [5 U.S.C. Chapter 51](#)

Classification Appeals, [5 CFR 511 §§ 601-616](#)

Classification Under the General Schedule, [5 CFR Part 511](#)

Definitions; Application, [5 U.S.C. § 5102](#)

Fair Labor Standards Act; Labor; Definitions, [29 U.S.C. § 203](#)

Federal Employees Retirement Special Retirement Coverage, Applicability and Purpose, [5 CFR § 842.801](#)

Job Grading Under the Prevailing Rate Systems, [5 CFR Part 532](#)

Job Grading Reviews and Appeals; General, [5 CFR § 532.701](#)

OPM, [Classification and Job Grading Appeal Filing Instructions](#) website

OPM, TS-107, [The Classifier's Handbook](#), August 1991

OPM, HRCD-5, [General Schedule Leader Grade Evaluation Guide \(GSLGEG\)](#), June 1998

OPM, HRCD-5, [General Schedule Supervisory Guide \(GSSG\)](#), April 1998

OPM, [Introduction to the Position Classification Standards](#), TS-134, July 1995; TS-107, August 1991; Revised August 2009

OPM, [Position Designation Tool \(PDT\)](#) website

OPM, [Research Grade Evaluation Guide \(RGEG\)](#), September 2006

OPM, SF-50, *Notification of Personnel Action*

Pay Administration Under the Fair Labor Standards Act (FLSA), [5 CFR Part 551](#)

Pay and Allowances, [5 U.S.C. Chapters 51 – 53](#)

Retroactive Effective Date, [5 CFR § 511.703](#)

USDA, [USDA Strategic Plan Fiscal Years 2022-2026](#), March 2022